

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

MIRIAM GAYLE KANE,

Petitioner

VS.

DAVID WILLIAM KANE,

Respondent

) Case Number: FDI-23-798208

) Hearing Date: August 18, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER RE: ATTORNEY FEES AND COSTS; JUDGMENT ENFORCEMENT;
SANCTIONS; CASE MANAGEMENT

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) The parties are Petitioner Miriam Gayle Kane and Respondent David William Kane.
- 2) On 5/1/26, Petitioner filed a Request for Order seeking: (a) enforcement of terms of the parties' 11/6/25 Judgment; (b) \$5,000 in Family Code section 271 sanctions; (c) \$73,488 in attorney's fees and costs for fees currently owed and anticipated fees (including expert fees); and (d) a trial setting date.
- 3) On 5/7/26, Petitioner filed a Proof of Service indicating service of Petitioner's Request for Order and supportive documents was effectuated by electronic service on Respondent's counsel on 5/7/26.
- 4) On 6/2/26, Petitioner filed an Income and Expense Declaration.
- 5) On 6/2/26, Petitioner filed a Proof of Service indicating service of Petitioner's Income and Expense Declaration was effectuated by electronic service on Respondent's counsel on 6/2/26.

- 6) On 6/22/26, Petitioner filed an Update Declaration augmenting the Family section 2030 attorney's fees request from \$73,488 to \$86,827 with attached attorney billing statements.
- 7) Respondent did not file a Responsive Declaration.
- 8) At the prior 6/25/26 hearing, counsel for Respondent requested a short continuance. The Court granted the continuance and ordered Respondent to file a Responsive Declaration and updated Income and Expense Declaration by 6/30/26, with Petitioner to file Reply Declaration by 7/6/26. The matter was continued to 7/9/26.
- 9) Respondent did not file a Responsive Declaration and updated Income and Expense Declaration by 6/30/26.
- 10) On 7/6/26, Petitioner filed a declaration entitled Second Update Declaration of Attorney for Petitioner in Support of Request for Attorney's Fees wherein Petitioner states that Respondent failed to comply with the briefing instructions ordered at the prior hearing and requesting and additional \$5,000 in Family Code section 271 sanctions, for a total of \$10,000 in sanctions.
- 11) At the prior 7/9/26 hearing, the Court continued the matter to 8/18/26 due to counsel for Respondent's medical emergency.
- 12) No additional pleadings were filed.

B. Findings and Order

- 1) Petitioner's unopposed request for enforcement of terms of the parties' 11/6/25 Judgment is GRANTED. Based on the terms of the 11/6/25 Judgment, the Court finds good cause to issue the following orders:
- 2) Regarding the Auburn Street property (located at 35 Auburn Street, San Francisco), the Court finds that Respondent failed to provide timely proof of any Family Code section 2640 reimbursement claims pursuant to section 2(a)(i) of the Judgment; therefore, no Family Code section 2640 reimbursement claim related to the Auburn Street property will be credited absent further order of the Court.
- 3) The Court confirms that the agreed value of the Auburn Street property for purposes of a buyout is \$1,550,000. See section 2(a)(ii) of the Judgment.

- 1 4) By 8/25/26, Respondent shall notify Petitioner in writing whether he intends to proceed with a
2 buyout of Petitioner's community property interest in Auburn Street property based on the agreed
3 \$1,550,000 value.
- 4 5) If Respondent elects to proceed with the buyout, Respondent shall complete the buyout by
5 9/25/26, unless the parties agree otherwise in writing.
- 6 6) The Court reserves jurisdiction over the disposition of the Auburn Street property and any related
7 issues.
- 8 7) If Respondent does not timely elect to proceed with or complete the buyout, Petitioner may file a
9 new Request for Order seeking to compel the sale of the Auburn Street property.
- 10 8) Regarding retirement accounts, the parties agreed to jointly retain Moon Schwartz and Madden
11 (MSM) to characterize and equalize all retirement accounts. See section 2(b)(i) of the Judgment.
- 12 9) Respondent shall supply all preliminary information and documents requested by MSM by
13 9/2/26. Respondent shall pay his 50% share of MSM's estimated cost and supply any additional
14 information and documents requested by MSM within 7 days of MSM's request.
- 15 10) The Court reserves jurisdiction to issue additional orders to ensure completion of the equalization
16 or retirements accounts and to impose sanctions in the event Respondent fails to comply.
- 17 11) Regarding retrieval of personal property, the parties shall coordinate a date certain for the transfer
18 of Petitioner's personal property consistent with the Judgment. The parties shall meet and confer
19 regarding and deadline and delivery of the items as the terms of the Judgment require Respondent
20 to deliver the items to a storage site in either San Francisco or San Mateo. See section 3(a). The
21 parties are encouraged to work cooperatively together to make the transfer of property as
22 seamless for both sides as possible.
- 23 12) Petitioner's request for \$86,827 in Family Code section 2030 attorney's fees is DENIED.
- 24 13) Petitioner's request for Family Code section 271 sanctions is GRANTED in the amount of \$5,000
25 as the Court finds Respondent's conduct caused unnecessary delay.
- 26 14) Either party may file an At Issue Memorandum to request a Status Conference at which time a
27 trial date can be requested if it is determined that the parties are ready for trial on the remaining
28 issues.
- 29 15) Counsel for Petitioner shall prepare the Findings and Order After Hearing.

1 16) **Preparation of Order:** If you are directed by the court to prepare the order after hearing – within
2 10 calendar days of the hearing you must either: (a) Serve the proposed order to the other
3 party/counsel for approval, and follow the procedures set forth in CA Rules of Court, Rule
4 5.125(c), or (b) If the other party did not appear or the matter was uncontested, submit the
5 proposed order after hearing directly to the court. Failure to submit the order after hearing within
6 10 days may allow the other party to prepare a proposed order and submit it to the court in
7 accordance with CA Rules of Court, Rule 5.125(d).